

Ghanendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2024 · 2024:AHC:89164-DB · Writ-C No. 11176 of 2024 · **Petition disposed; demand withdrawn; fresh Supply Code order after hearing**

HEADNOTE

Where a theft-of-electricity demand is withdrawn by the licensee with a proposal to pass a fresh order after hearing, the High Court issues no further writ direction, save to observe that the fresh order must strictly follow the procedure prescribed by the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 9 February 2024 issued by the Executive Engineer, Electricity Distribution Division (Nagar) Khand 4, Bareilly, for electricity charges and penalty on an allegation of theft, and sought a mandamus against coercive action. The Department sought time for instructions, then said proper procedure had not been followed and a fresh hearing would be given; coercive steps were stayed. At final hearing, counsel produced a communication that the demand had been withdrawn and a fresh order would follow after hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

theft-demand-fresh-order

HOLDING

Once the licensee withdraws a theft demand and undertakes to pass a fresh order after hearing, the Court issues no further direction, except that the fresh order must strictly follow the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 5-6

FLAG order cites the Supply Code generally; no clause numbered

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT AND QUANTUM OF THE WITHDRAWN DEMAND

Demand withdrawn; a fresh order is to be passed after hearing under the Supply Code. ¶ 4-6